

## **TENTATIVE RULINGS for LAW and MOTION**

### **January 21, 2026**

Pursuant to Yolo County Local Rules, the following tentative rulings will become the order of the court unless, by 4:00 p.m. on the court day before the hearing, a party requests a hearing and notifies other counsel of the hearing. To request a hearing, you must contact the clerk of the department where the hearing is to be held. Copies of the tentative rulings will be posted on Yolo Court's Website, at [www.yolo.courts.ca.gov](http://www.yolo.courts.ca.gov). If you are scheduled to appear and there is no tentative ruling in your case, you should appear as scheduled.

|                                                       |                |
|-------------------------------------------------------|----------------|
| Telephone number for the clerk in Department Eleven   | (530) 406-6843 |
| Telephone number for the clerk in Department Fourteen | (530) 406-6800 |

## TENTATIVE RULING

**Case:** **Arfsten v. Woodland Joint Unified School District**  
**Case No. CV-2025-1304**

**Hearing Date:** **January 21, 2026** **Department Fourteen** **9:00 a.m.**

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The Court reminds plaintiff of the memorandum page length limitations. (Cal. Rules of Court, rule 3.1113(d) [stating that “no opening or responding memorandum may exceed 15 pages”].) In the future, the Court may decline to consider any argument or legal authority found in pages exceeding the maximum permitted number of pages.

As a preliminary matter, on the Court’s own motion, the following causes of action are **STRICKEN** from plaintiff Sheri Arfsten’s second amended complaint:

- Second cause of action for failure to prevent retaliation;
- Third cause of action for defamation;
- Fourth cause of action for negligent supervision and retention; and
- Sixth cause of action for declaratory relief.

Plaintiff improperly inserted these causes of action in the second amended complaint because they are not drawn in conformity with the Court’s November 12, 2025, Minute Order on defendant Woodland Unified School District’s demurrer to plaintiff’s first amended complaint. (Code Civ. Proc., § 436.) Plaintiff failed to seek leave of court to add new causes of action. (*Community Water Coalition v. Santa Cruz County Local Agency Formation Com.* (2011) 200 Cal.App.4th 1317, 1329 [“The plaintiff may not amend the complaint to add a new cause of action without having obtained permission to do so, unless the new cause of action is within the scope of the order granting leave to amend.”].)

Defendants’ defendants Woodland Joint Unified School District, Spencer Springer, Leanee Medina Estrada, Theresa Arias-Dunlop, Lewis Wiley Jr., and Michael Abarca’s demurrer to the remaining causes of action [first cause of action for retaliation in violation of Labor Code section 1102.5 and fifth cause of action for intentional infliction of emotional distress] on the ground that plaintiff fails to allege that she timely served a Government Tort Claim or legal justification for not doing so is **SUSTAINED WITHOUT LEAVE TO AMEND**. (Code Civ. Proc., § 430.10, subd. (e); *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

Plaintiff’s second amended complaint fails to allege facts demonstrating compliance with or excuse from the claim presentation requirement of the Government Claims Act, and no amendment can cure this defect. (Gov. Code, §§ 905, 910; *State of California v. Superior Court* (2004) 32 Cal.4th 1234, 1240 – 1241 [compliance with the claim presentation requirement is an element of a cause of action against a public entity]; *Nasrawi v. Buck Consultants LLC* (2014) 231 Cal.App.4th 328, 338; see *California Restaurant Management Systems v. City of San Diego* (2011) 195 Cal.App.4th 1581, 1591 [the Government Claims Act establishes certain conditions precedent to the filing of a lawsuit against a public entity]; *Petersen v. Vallejo* (1968) 259 Cal.App.2d 757, 766 [“...it is generally recognized that the mere fact the governmental entity has some notice or knowledge of the accident and possible claim will not excuse failure of the claimant to file a timely claim as required by the statute.”]; see also *City of Stockton v. Superior Court* (2007) 42 Cal.4th 730, 738-740 [the claims presentation requirement applies to

tort claims]; *Willis v. City of Carlsbad* (2020) 48 Cal.App.5th 1104, 1129 [the claims presentation requirement applies to claim for retaliation under Labor Code section 1102.5]; see generally SAC.) Furthermore, substantial compliance cannot be predicated upon no compliance. (*City of San Jose v. Superior Court* (1974) 12 Cal.3d 447, 455, 456 “[It is well-settled that claims statutes must be satisfied even in face of the public entity’s actual knowledge of the circumstances surrounding the claim. Such knowledge -- standing alone -- constitutes neither substantial compliance nor basis for estoppel.”]; *Powers Farms, Inc. v. Consolidated Irrigation Dist.* (1941) 19 Cal.2d 123, 130 [“It is well settled that written notice to or actual knowledge on the part of public officers does not constitute a substantial compliance with or satisfaction of a statutory requirement for a verified claim, or give rise to an estoppel to assert the defense. The long established rule in this state is that the courts may allow no exceptions to the plain provisions of a claim statute under the guise of interpretation or construction. Compliance with the statute is mandatory and the requirement may not be waived.”]; see generally SAC.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

**TENTATIVE RULING**

**Case:** **LaForga v. State Farm Mutual Automobile Insurance Company**  
**Case No. CV-2025-3801**

**Hearing Date:** **January 21, 2026** **Department Eleven** **9:00 a.m.**

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Petitioner Socorro LaForga's request for continuance of hearing on petition to compel arbitration is **GRANTED** and therefore, this matter is **CONTINUED** to **March 3, 2026**, at 9:00 a.m. in Department Eleven.

### TENTATIVE RULING

**Case:** **TD Bank, N.A. v. Kearney**  
**Case No. CV-2025-1023**

**Hearing Date:** **January 21, 2026** **Department Eleven** **9:00 a.m.**

Plaintiff TD Bank, N.A.'s unopposed motion for order to have admissions deemed admitted is **GRANTED**. (Code Civ. Proc., § 2033.280; Chen decl., ¶¶ 1-4, Exhibit 1.)

Plaintiff's request for sanctions is **GRANTED**, in the amount of \$510.00, against defendant Timothy Joseph Kearney. (Code Civ. Proc., § 2033.280, subd. (c); Chen decl., ¶ 7.) The Court does not award sanctions for time not yet incurred. Defendant shall pay the sanction by **February 23, 2026**.

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.